

[doc. web n. 10077313]  
Provision of September 26, 2024  
Register of provisions  
n. 607 of September 26, 2024

## THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by  
Prof. Pasquale Stanzione, President, Prof.  
Ginevra Cerrina Feroni, Vice President, Dr.  
Agostino Ghiglia, and Attorney Guido Scorza, members, and  
Secretary General Fabio Mattei;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament  
and of the Council, of April 27, 2016, concerning the  
protection of natural persons with regard to the  
processing of personal data, as well as the free  
movement of such data and repealing Directive  
95/46/EC, "General Data Protection Regulation" (hereinafter "GDPR");

HAVING REGARD TO Legislative Decree No. 196 of June 30, 2003,  
containing the "Code regarding the protection of  
personal data" (hereinafter "Code");

HAVING REGARD TO General Provision No. 243 of May 15, 2014  
containing the "Guidelines on the processing of  
personal data, including in acts and administrative  
documents, carried out for the purposes of publicity  
and transparency on the web by public entities and other  
obligated entities," published in G.U. No. 134 of  
June 12, 2014 and on [www.gpdp.it](http://www.gpdp.it), doc. web n. 3134436 (hereinafter "Guidelines on Transparency");

HAVING REGARD TO Regulation No. 1/2019 concerning  
internal procedures with external relevance,  
aimed at carrying out the tasks and  
exercising the powers assigned to the Guarantor for the  
protection of personal data, approved by  
Resolution No. 98 of April 4, 2019, published in G.U.  
No. 106 of May 8, 2019 and on [www.gpdp.it](http://www.gpdp.it), doc. web n.  
9107633 (hereinafter "Guarantor Regulation No.  
1/2019");

HAVING REGARD TO the documentation in the records;

HAVING REGARD TO the observations made by the Secretary  
General pursuant to Article 15 of the Guarantor Regulation No. 1/2000 on the organization and  
functioning of the office of the Guarantor for the  
protection of personal data, on [www.gpdp.it](http://www.gpdp.it), doc.  
web n. 1098801;

Reporting by Dr. Agostino Ghiglia;

## PREAMBLE

### 1. Introduction

This Authority has opened an investigation against the Metropolitan City of Turin regarding a violation  
of the regulations on the protection of personal data resulting from the dissemination of personal data  
on the institutional website of the aforementioned entity.  
Specifically, from the preliminary verification carried out by the Office, it emerged that in the section

"Info and Services," in the area "Public Register and Acts" of the institutional website, it is possible to consult the documents published in the public register. In this regard, a sample search was conducted in the section titled "consultation of all acts/provisions registered and published since XX," with particular reference to the assessment/collection of revenues from administrative fines and reimbursements to volunteer environmental guards (GEV), finding several documents, among which the following were viewed and downloaded:

1. Executive determination No. XX of XX (url <https://...>);
2. Executive determination No. XX of XX (url <https://...>);
3. Executive determination No. XX of XX and attachment titled "XX" (url <https://...>)

The cited documents contained personal data of the subjects sanctioned for violations of the sector regulations by the volunteer environmental guards (GEV), indicating the amount of the fine; the name of the GEV with an indication of the amount of reimbursements for expenses incurred and the bank details for making the payment, as well as the relevant email and mobile number (see attachment titled "XX" mentioned above at No. 3).

## 2. The regulations on the protection of personal data

According to the relevant regulations, "personal data" is "any information relating to an identified or identifiable natural person ('data subject')" and "an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person" (Article 4, paragraph 1, no. 1, of the GDPR).

Public entities, such as the Metropolitan City, may disseminate "personal data" in compliance with the regulations on the protection of personal data (Article 2-ter, paragraphs 1 and 3, of the Code) and – in any case – the principle of "data minimization," according to which personal data must be "adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed" (Article 5, paragraph 1, letter c, of the GDPR).

Since 2014, the Guarantor has provided specific indications to administrations on the precautions to be taken for the dissemination of personal data online with General Provision No. 243 of May 15, 2014, containing the "Guidelines on the processing of personal data, including in acts and administrative documents, carried out for the purposes of publicity and transparency on the web by public entities and other obligated entities," published in G.U. No. 134 of June 12, 2014 and on [www.gpdp.it](http://www.gpdp.it), doc. web n. 3134436 (currently being updated, but still relevant in its substantive part).

## 3. Preliminary assessments of the Office on

### **\*\*Processing of Personal Data Conducted.\*\***

From the checks carried out based on the elements acquired and the facts emerged following the investigative activity, as well as subsequent assessments, the Office, with note prot. n. XX of XX, has ascertained that the Metropolitan City of Turin – by disseminating the personal data and information previously described – has engaged in conduct not in compliance with the relevant regulations regarding the protection of personal data contained in the GDPR. Therefore, with the same note, the aforementioned entity was notified of the violations committed (pursuant to Article 166, paragraph 5, of the Code), communicating the initiation of proceedings for the adoption of measures referred to in Article 58, paragraph 2, of the GDPR and inviting the administration to submit defensive writings or documents to the Authority, and, if necessary, to request to be heard by this Authority, within a period of 30 days (Article 166, paragraphs 6 and 7, of the Code; as well as Article 18, paragraph 1, of Law No. 689 of 24/11/1981).

### **\*\*4. Defensive Writings.\*\***

The Metropolitan City of Turin, with note prot. n. XX of XX, sent its defensive writings to the Authority regarding the notified violations. In this regard, it is recalled that, unless the act constitutes a more serious offense, anyone who, in a proceeding before the Authority, falsely declares or certifies news or circumstances or produces false acts or documents is liable pursuant to Article 168 of the Code, entitled "Falsehood in Declarations to the Authority and Interruption of the Execution of the Authority's

Tasks or Exercise of Powers."

Specifically, regarding the conduct exhibited, the administration highlighted, among other things, that:

- "the sensitive data indicated in the documents in question have been obscured;
- "the Offices of the D.P.O., based at the Communication and Relations with Citizens and Territories Directorate (OA5) [...] have acted diligently by conducting an additional sample verification of certain types of measures already published in the Online Public Register";
- "[the] Institutional Affairs Directorate (A02), responsible for compliance control regarding privacy in political and managerial measures, [has chosen] to formalize and disseminate to internal staff a specific organizational provision, on the records of the Entity, regarding the adoption of the necessary precautions to be implemented in the data and information minimization process. [...] In particular, it has been recommended to the working group dedicated to these tasks to proceed with an 'ex ante' verification, concerning the first control already carried out by the competent Directorates on the proposal of the acts, as well as an 'ex post' verification, regarding the publication of the measures in the Online Public Register [...] in order to prevent the recurrence of what occurred [...]";
- "It should be added that in order to prevent the recurrence of the incident, within the activity of online publication of documents containing personal data of sanctioned subjects or concerning reimbursements to Volunteer Ecological Guards (GEV), instructions have been given to the competent Directorate to provide for a double check on this type of acts, avoiding, where possible, attaching as an integral part of the same the summary tables of the aforementioned reimbursements";
- "It is noted the intention to increase the hours of specific training on the subject, through internal or external trainers to the Entity, demonstrating the constant attention of the Entity towards the issue in question."

#### **\*\*5. Outcome of the Investigation Regarding the Complaint Filed\*\***

The issue at hand concerning the case submitted to the Authority relates to the dissemination of personal data and information of Volunteer Ecological Guards (name, email, mobile number, reimbursements received, and IBAN for crediting the amounts) and of individuals sanctioned for violations of laws within their competence (names and amount of the sanction received), contained in certain documents published online (as identified in files above under nos. 1-3 of paragraph 1).

The Metropolitan City of Turin, in its defensive writings, confirmed the publication, stating that it had taken steps to obscure the personal data in question and had adopted measures to prevent a recurrence of the incident in the future.

Nevertheless, the circumstances highlighted in the entity's defensive writings, examined as a whole, although certainly deserving of consideration for the evaluation of conduct, are not sufficient to allow for the archiving of the present proceeding. This is because, in the case at hand, none of the hypotheses provided for in Article 11 of the Authority's Regulation No. 1/2019 apply.

In this context, the preliminary assessments of the Office referred to in note prot. n. XX of XX are confirmed, and it is noted that the processing of personal data carried out by the Metropolitan City of Turin is not in compliance with the relevant regulations regarding the protection of personal data, as the dissemination of the aforementioned personal data contained in the documents identified in files nos. 1-3 of paragraph 1 occurred in violation of:

- 1) the provisions contained in Article 2-ter, paragraphs 1 and 3, of the Code; in Article 7-bis, paragraph 3, of Legislative Decree No. 33/2013; in Article 6, paragraph 1, letters c) and e), paragraph 2, and paragraph 3, letter b), of the GDPR;
- 2) the principle of "data minimization," which states that data should not be "more than what is necessary for the purposes for which they are processed," as provided for in Article 5, paragraph 1, letter c), of the GDPR.

However, considering that the conduct has exhausted the

**\*\*its effects, as the data controller has declared that they have removed the personal data in question from the institutional website, without prejudice to what will be said regarding the application of the administrative monetary sanction, there are no grounds for the adoption of further corrective measures pursuant to Article 58, paragraph 2, of the GDPR.\*\***

6. **\*\*Adoption of the injunction order for the application of the administrative monetary sanction (Articles**

58, paragraph 2, letter i; 83 of the GDPR)\*\*

The Metropolitan City of Turin has been found to have violated Articles 5, paragraph 1, letters a) and c); 6, paragraph 1, letters c) and e), paragraph 2 and paragraph 3, letter b), of the GDPR as well as Articles 2-ter, paragraphs 1 and 3, of the Code (see also Articles 7-bis, paragraph 3, of Legislative Decree No. 33/2013).

In this regard, Article 83, paragraph 3, of the GDPR provides that "If, in relation to the same processing or related processing, a data controller or a data processor violates, with intent or negligence, various provisions of this regulation, the total amount of the administrative monetary sanction shall not exceed the amount specified for the most serious violation."

In this case, the violation of the aforementioned provisions – also considering the reference contained in Article 166, paragraph 2, of the Code – is subject to the application of the same administrative monetary sanction provided for by Article 83, paragraph 5, of the GDPR, which therefore applies to the case at hand.

The Authority, pursuant to Articles 58, paragraph 2, letter i) and 83 of the GDPR, as well as Article 166 of the Code, has the corrective power to "impose an administrative monetary sanction pursuant to Article 83, in addition to [other] corrective measures [referred to in this paragraph, or in lieu of such measures, depending on the circumstances of each individual case]." In this context, "the College [of the Authority] adopts the injunction order, which also provides for the application of the administrative sanction of its publication, in whole or in part, on the Authority's website pursuant to Article 166, paragraph 7, of the Code" (Article 16, paragraph 1, of the Authority Regulation No. 1/2019).

The aforementioned administrative monetary sanction imposed, depending on the circumstances of each individual case, must be determined in amount, taking into due account the elements provided for by Article 83, paragraph 2, of the GDPR.

In this sense, regarding the conduct exhibited, it is noted that it involved the unlawful online dissemination of personal data that did not belong to special categories nor to criminal convictions or offenses (Articles 9 and 10 of the GDPR), relating to numerous subjects for whom, in some cases, the email, mobile phone number, and IBAN of the bank account were disclosed, maintained on the institutional website for several years. This conduct appears to be the result of an error and, therefore, of a negligent nature.

It is therefore believed that, in this case, the level of severity of the conduct exhibited by the data controller is medium (see European Data Protection Board, "Guidelines 04/2022 on the calculation of administrative fines under the GDPR" of 23/5/2023, point 60).

That said, in determining the total amount of the sanction, it is deemed necessary to take into account, among other things, the extent of the territorial scope of the entity and, therefore, the circumstance that the Metropolitan City of Turin is a large local authority with more than two million inhabitants.

In any case, the following mitigating circumstances are taken into account:

- the data controller, following the request of the Authority, intervened promptly, collaborating with the Authority during the investigation of this proceeding in order to remedy the violations, mitigating their possible negative effects, declaring, for this purpose, that the conduct has ceased having removed the data from the institutional website;
- in the response to the Authority, some organizational measures implemented by the entity pursuant to Articles 25-32 of the GDPR were described;
- there are no previous relevant violations of the GDPR committed by the entity.

In light of the aforementioned elements, assessed in their entirety, it is deemed necessary to determine pursuant to Article 83, paragraphs 2 and 3, of the GDPR the amount of the monetary sanction, provided for by Article 83, paragraph 5, of the GDPR, in the amount of €50,000.00 (fifty thousand) for the violation of Articles 5, paragraph 1, letters a) and c); 6, paragraph 1, letters c) and e), paragraph 2 and paragraph 3, letter b), of the GDPR; as well as Article 2-ter, paragraphs 1 and 3, of

the Code (see also Articles 7-bis, paragraph 3, of Legislative Decree No. 33/2013), as an administrative monetary sanction deemed effective, proportionate, and dissuasive pursuant to Article 83, paragraph 1, of the same GDPR.

In relation to the specific circumstances of this case, concerning the dissemination of personal data online in the absence of an adequate legal basis for an extended period (Article 2-ter, paragraphs 1 and 3, of the Code), it is also deemed that the accessory sanction of the publication of this provision on the Authority's website should be applied, as provided for by Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Authority Regulation No. 1/2019.

Finally, it is believed that the conditions referred to in Article 17 of the Authority Regulation No. 1/2019 are met.

**\*\*ALL OF THE ABOVE HAVING BEEN STATED, THE AUTHORITY\*\***

noted the unlawfulness of the processing carried out by the Metropolitan City of Turin in the terms indicated in the reasoning pursuant to Articles 58, paragraph 2, letter i), and 83 of the GDPR for violation of Articles 5, paragraph

1, lett. a) and c); 6, par. 1, lett. c) and e), par. 2 and par. 3, lett. b), of the GDPR, as well as art. 2-ter, paragraphs 1 and 3, of the Code;

**ORDERS**

the Metropolitan City of Turin, represented by the legal representative pro tempore, with registered office at Corso Inghilterra 7 - 10138 Turin (TO) – C.F. 01907990012 to pay the sum of € 50,000.00 (fifty thousand) as an administrative pecuniary sanction for the violations stated in the reasoning;

**REQUIRES**

the same Metropolitan City to pay the sum of € 50,000.00 (fifty thousand), according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts pursuant to art. 27 of law no. 689/1981.

It is reminded that the offender has the option to settle the dispute by paying – always according to the methods indicated in the annex – an amount equal to half of the imposed sanction, within the term provided for the submission of the appeal as indicated below (art. 10, paragraph 3, of legislative decree no. 150 of 1/9/2011, as provided for in art. 166, paragraph 8, of the Code).

**PROVIDES**

- the publication of this provision on the website of the Guarantor pursuant to art. 166, paragraph 7, of the Code and art. 16, paragraph 1, of the Guarantor's Regulation no. 1/2019;
- the annotation in the internal register of the Authority of the violations and the measures adopted pursuant to art. 58, par. 2, of the GDPR with this provision, as provided for by art. 17 of the Guarantor's Regulation no. 1/2019.

Pursuant to art. 78 of the GDPR, art. 152 of the Code, and art. 10 of legislative decree no. 150/2011, it is possible to appeal against this provision before the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, September 26, 2024

**THE PRESIDENT**

Stanzione

**THE REPORTER**

Ghiglia

**THE SECRETARY GENERAL**

Mattei